

minor and that predate this matter would materially impact any assessment of damages in this case. The County further contends refusal would be particularly prejudicial because Plaintiff denied that she ever made sexual assault allegations against any other foster parents, caregivers, or placements throughout discovery. Specifically, Plaintiff denied such in Request for Admission No. 23.

Plaintiff, in the opposition, shares that she filed the Santa Cruz County action on July 21, 2022, nearly four years ago. (Serrano Decl., ¶14.) She states that it is public record. Plaintiff then argues that Defendant could have raised questions concerning any related actions, including the Santa Cruz County action, at her initial deposition. Plaintiff also states the issues mentioned by the County were at issue already, or could have been, explored in the original deposition. Plaintiff further states that the question of what portion of Plaintiff's harm is attributable to Defendant versus other parties is a matter for expert testimony and trial. It does not require that Plaintiff be deposed a second time about the same underlying factual events she already described under oath. As to the suggestion that it should be permitted to examine Plaintiff about the Request for Admission No. 23 issue – relating to whether Plaintiff made sexual abuse allegations against multiple foster parents – Plaintiff argues it is a transparent attempt to use the motion process to rehash discovery it already received. She represents the admission is proper and asserts that Defendant's disagreement with her response is not a basis for a second deposition.

Here, although Defendant represents the discovery is rather recent, the other action itself presents no indication that there are any new factual issues. The Complaint originally alleged that Santa Cruz County placed Plaintiff in a foster care group home where a male juvenile resident repeatedly sexually assaulted and abused her at the age of 11 years old. (See Compl., ¶¶22-27.) It also originally alleged that Plaintiff reported the abuse to her case worker for Santa Cruz County and nothing was done. (*Id.*, ¶¶28-29.) It was also originally alleged and the FAC continues to allege that Plaintiff continued as a ward of the court in foster care. Upon information and belief, Plaintiff's juvenile case was transferred from the jurisdiction of Santa Cruz County to the County on or about 2002. She was placed under the custody, control, and care of the County for continued foster care supervision and was placed in the Faraq Foster Home where her foster father allegedly sexually assaulted and abused Plaintiff. (*Id.*, ¶¶41, 45-& 46; FAC, ¶¶ 20, 24-25, & 30.) Finally, it originally alleged and continues to allege that after she reported the abuse to the County, nothing was done.

Defendant County's argument then that the discovery of the Santa Cruz County action warrants another deposition is unpersuasive. It was on notice and could have asked during Plaintiff's deposition about the factual basis for the inter-county transfer allegations; the allocation of alleged responsibility between the counties; the chronology of alleged events; the basis for any claimed notice to the County; and whether the claimed injuries and damages are attributable to conduct by others. Again, the Court does not see good cause.

18. *Stanley, et al, v. Lake Chalet Homeowners Association, et al*, Case No. CIVSB2320918
Motions to be Relieved as Attorney of Record for Plaintiffs
6/2/26, 9:00 a.m., S-17

This matter was continued from 5/22/26 to allow for either supplemental declaration or appearance for in camera review of the good cause for the requested relief

The Court would again **CONTINUE** or seek in camera discussion of the facts in support.

Here, the Lubin Pham + Caplin firm seeks to be relieved as counsel for Plaintiffs Timothy and Catherine Stanley. The declarations submitted in support only cite the law and offer in camera discussion. While the Court is cognizant of the protections related to attorney-client relationship, the Court will need *some* sort of averment establishing good cause pursuant to rule 1.16(b) of the Rules of Court. As currently worded, the submitted declarations are insufficient. Further, the Court notes a declaration submitted by the Plaintiffs asserting a *lack* of good cause. (Stanley Decl., ¶4 [“Attorney has not demonstrated sufficient grounds to justify . . .”]; also Stanley Decl., ¶7 [no meaningful discussion].) Thus, it appears that the assertion of good cause is disputed.

19. *Minguela, et al, v. American Quartz Max Corp.*, Case No. CIVSB2226990
Motion for Preliminary Approval of Class Action Settlement
6/2/26, 9:00 a.m., Dept. S-17

This matter was continued from its prior hearing date of May 11, 2026, to allow sufficient notice on the motion

Tentative Ruling

The Court would **GRANT**.

Preliminary Approval of Class Action Settlements in General

Settlement of a class action requires court approval. (Cal. Rules of Court, rule 3.769.) The moving party must demonstrate that “the settlement is fair, adequate and reasonable.” (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 126; *Reed v. United Teachers Los Angeles* (2012) 208 Cal.App.4th 322, 337.) The court has “broad discretion in making this determination.” (*In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.) Relevant factors the court may consider include “the strength of the plaintiffs’ case, the risk, the expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental